2 RESEARCH OBJECTIVES

Traditional legal research can pursue different types of research objectives. We distinguish between descriptive, classifying, comparative, theory-building, explanatory, evaluative and recommendatory research objectives.[1] The number and/or different types of research objectives always depend on the research itself: the topic of the research, its complexity, the available time, etc.

In what follows, each type of research objective will be discussed separately. During the research process different types of research objectives can, however, interact with each other. Part 4 of this book will discuss these possible interactions.

2.1 DESCRIPTIVE RESEARCH OBJECTIVE

Describing the law is the first step in any legal research.[2] "It is not a subordinate activity of the legal researcher, but concerns an essential constituent of his work: it is impossible to work on the law without assembling, ordering and describing it".[3] A descriptive research objective will therefore usually proceed the other objectives of a research, such as classifications, comparisons, evaluations etc. Describing the law can, however, also be the main and only objective of a legal research. In this case, the research focuses on retrieving the scope and meaning

1 The typology on research objectives was developed in our PhD project and previously discussed in the article: L. KESTEMONT, "A Meta-Methodological Study of Dutch and Belgian PhDs on Social Security Law: Devising a Typology Of Research Objectives as a Supporting Tool", *European Journal of Social Security* 2015, 361–384.

2 M. VAN HOECKE, "Aard en methode van de rechtsdogmatiek", *R & R* 1984, 191; C. STOLKER, *Rethinking The Law School. Education, Research, Outreach and Governance*, Cambridge, Cambridge University Press, 2014, 212.

3 Translation of: "Het gaat hier niet om een bijkomstige nevenwerkzaamheid van de rechtswetenschappelijke onderzoeker, maar om een essentieel bestanddeel van zijn werk: zonder verzameling, ordening en beschrijving van de rechtsstof kan men niet verder werken aan die rechtsstof." A.R. BLOEMBERGEN, "Iets over object en methode van wetenschap en rechtspraak in het privaatrecht" in O.W.M. KAMSTRA, F.B.M. KUNNEMAN & C.W. MARIS (eds.), *Nederlandse rechtswetenschap. Tussen distantie en betrokkenheid: paradigma's in de twintigste eeuw,* Zwolle, W.E.J. Tjeenk Willink, 1988, 74. See also: E.L. RUBIN, "The Practice and Discourse of Legal Scholarship", *Mich.L.Rev.* 1987–88, 1849; R.A.J. VAN GESTEL and J.B.M. VRANKEN, "Rechtswetenschappelijke artikelen", *NJB* 2007, 1454.

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of a legal concept or construct.[4] As the law is constantly changing, it is an important task of legal scholars to describe its altered meaning and scope.[5]

According to TIJSSEN, "to describe means to map out. In order to understand a phenomenon it has to be analyzed, i.e. systematically dividing it into different parts. In a description something will be presented and explained in its different components."[6] This definition clarifies that a descriptive research objective aims to systematically analyze legal constructs in all their components in order to present them in an accurate, significant and orderly manner.[7]

Legal scholars often claim that a mere display or summary of existing law is not enough to qualify as academic legal research.[8] A legal researcher cannot simply re-describe existing knowledge, but should always add something to the existing body of knowledge.[9] This claim is true if the description of law is the main – and therefore only – objective of a research. However, in most legal research describing the law serves other objectives (e.g. comparisons or evaluations of law). In those cases the description of law is not necessarily 'original' or 'adding something new to the existing body of knowledge', as it most often concerns legislation, case law and legal doctrine already described by other scholars. Although these descriptions do not contribute as such to the existing body of knowledge, they are necessary for the further course of the research. Moreover, every legal research has its own scope and perspective, depending on the researcher, the topic, the sources, the main research

4 M. VAN HOECKE, *Is de rechtswetenschap een empirische wetenschap?*, The Hague, Boom Juridische uitgevers, 2010, 19.

5 M. VAN HOECKE, *Is de rechtswetenschap een empirische wetenschap?*, The Hague, Boom Juridische uitgevers, 2010, 38.

6 Translation of: "Beschrijven betekent in dit verband in kaart brengen. Om een verschijnsel te leren kennen zal het geanalyseerd moeten worden, d.w.z. op een systematische wijze in onderdelen verdelen. In een beschrijving wordt iets uiteengezet en uitgelegd uit welke delen het bestaat." (Referring to H. OOST and A. MARKENHOF, 2007). H. TIJSSEN, *De juridische dissertatie onder de loep*, The Hague, Boom Juridische uitgevers, 2009, 58. See also: G.A.F.M. VAN SCHAAIJK, *Praktijkgericht juridisch onderzoek*, The Hague, Boom Juridische uitgevers, 2011, 71.

7 H. OOST, *Circling Around a Question: Defining Your Research Problem*, IVLOS, Utrecht 2003, 34; H. TIJSSEN, *De juridische dissertatie onder de loep*, The Hague, Boom juridische uitgevers, 2009, 58; G.A.F.M. VAN SCHAAIJK, *Praktijkgericht juridisch onderzoek*, The Hague, Boom Juridische Uitgevers, 2011, 71; F. KUNNEMAN, *Rechtswetenschap*, Nijmegen, Ars Aequi Libri, 1991, 5; A.M. HOL, "Pleidooi voor een jurisprudentia. Over recht en rechtswetenschap" in J.W.L. BROEKSTEEG and E.F. STAMHUIS (eds.), *Rechtswetenschappelijk onderzoek. Over object en methode,* The Hague, Boom Juridische Uitgevers, 2003, 10.

8 J.M. BARENDRECHT, "Rechtswetenschap: stoffig of inventief?", *NJB* 1996, 707; VLIR KWALITEITSZORG ONDERZOEK RECHTEN, *Model voor Integrale Kwaliteitsevaluatie van het Onderzoek in de Rechtswetenschappen,* versie 22 september 2004, www.vlir.be/media/docs/Onderzoeksbeleid/notitie_KZR_22sept2004.pdf, 14; J.M. SMITS, *The Mind and Method of the Legal Academic,* Cheltenham, Edward Elgar, 2012, 103.

9 N. HOEKX, K. VANHOVE and A. VERBEKE, "Yes we care! Bedenkingen over de (methode der) rechtswetenschap", *RW* 2008–09, 1787; J.M. BARENDRECHT, "Rechtswetenschap: stoffig of inventief?", *NJB* 1996, 708; R.A. POSNER, "Legal Scholarship Today", *Harv.L.Rev.* 2002, 1320; R.A.J VAN GESTEL, Preadvies "Kwaliteit van juridische publicaties. Over ranking, peer review, sciëntometrics en vertrouwen in alternatieve evaluatiemethoden" in HANDELINGEN NEDERLANDSE JURISTEN-VERENIGING, *Kwaliteit als keuze in rechtspraak, wetgeving en rechtswetenschap,* Deventer, Kluwer, 2015, 338.

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objective and the limitations. Legal scholars will therefore never take over an existing description of law, but will always describe it from their own point of view.

2.2 CLASSIFYING RESEARCH OBJECTIVE

A classifying research objective aims to classify (legal) phenomena in the existing legal system.[10] This means that factual situations, court judgments and new regulations are ranged under existing legal doctrines (e.g. the doctrine on the abuse of the law), existing legal concepts (e.g. aleatory contracts) or existing legal constructs (e.g. tontines).[11] It is possible that a given phenomenon cannot be classified under an existing legal category, because of its unique characteristics. In that case a new legal category will arise.

Classification is a typical and essential objective of legal scholarship.[12] First of all, classifying a legal system does not only allow understanding the system and disseminating knowledge, but also working on it.[13] In other words, classification results in a meaningful, organized, accessible, understandable and workable legal system.[14] It allows determining which legal rules or principles are applicable to a particular situation.[15]

Second, classifying research objectives contribute to the further development and refinement of the legal system. In this respect, legal scholars can examine whether (new) social phenomena or factual situations – currently without their own regulating legal framework – can be classified under existing legal categories, as a result of which legal rules or principles become applicable.[16]

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10 J.M. SMITS, *The Mind and Method of the Legal Academic,* Cheltenham, Edward Elgar, 2012, 18.

11 M. BARENDRECHT, J. VRANKEN, I. GIESEN, M.J. BORGERS, W. VAN DER BURG, H.E.B. TIJSSEN, G.C.G.J. VAN ROERMUND and W.H. VAN BOOM, "Methoden van rechtswetenschap: komen we verder?", *NJB* 2004, 1425; H. TIJSSEN, *De juridische dissertatie onder de loep*, The Hague, Boom Juridische uitgevers, 2009, 58 (refering to H. OOST & A. MARKENHOF, *Een onderzoek voorbereiden,* Baarn, HB-uitgevers, 2007); H. OOST, *Hoe schrijf ik een betere scriptie. Een nieuwe methode voor het schrijven van scripties en andere teksten*, Amsterdam, Contact, 1995, 45; J.M. POLAK, *Theorie en practijk der rechtsvinding,* Zwolle, W.E.J. Tjeenk Willink, 1953, 31–32.

12 M. VAN HOECKE, *Is de rechtswetenschap een empirische wetenschap?,* The Hague, Boom Juridische uitgevers, 2010, 13; A. AARNIO, *Denkweisen der Rechtswissenschaft*, Wien, Springer, 1979, 50; J.M. BARENDRECHT, "Rechtswetenschap: stoffig of inventief?", *NJB* 1996, 712; A. PECZENIK, "Scientia Juris. Legal Doctrine as knowledge of Law and as a Source of Law" in E. PATTARO (ed.), *A Treatise of Legal Philosopy and General Jurisprudence,* Dordrecht, Springer, 2005, 1; N. MACCORMICK, *Rhetoric and the Rule of* Law, Oxford, Oxford University Press, 2005, 3.

13 See also: G. SAMUEL, *Epistemology and Method in Law,* Aldershot, Ashgate, 2003, 217; P. SCHOLTEN, "Algemeen Deel" in *Asser's Handleiding tot de beoefening van het Nederlandsch Burgerlijk Recht*, Zwolle, W.E.J. Tjeenk Willink, 1954, 60.

14 See. F. KUNNEMAN, *Rechtswetenschap*, Nijmegen, Ars Aequi Libri, 1991, 7; R. KRANENBURG, *De grondslagen der rechtswetenschap,* Haarlem, Tjeenk Willink, 1952, 23.

15 N. MACCORMICK, *Rhetoric and the Rule of* Law, Oxford, Oxford University Press, 2005, 141.

16 P. WESTERMAN and M. WISSINK, "Rechtsgeleerdheid als rechtswetenschap", *NJB* 2008, 504.

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Finally, at the beginning of a research legal scholars will often clarify the main concepts of their study or develop a conceptual framework.[17] Conceptualization is necessary as the scope or meaning of legal concepts is not always clear or undisputed, and can have an important effect on the scope of the research.[18] In order to define these concepts, legal scholars will have to classify them in terms of their role/purpose/function within the legal system and in terms of their relation with other legal concepts and categories. Conceptualization can therefore be qualified as a classifying research objective.[19]

2.3 COMPARATIVE RESEARCH OBJECTIVE

> *"Comparative Law is somewhat like traveling. The traveler and the comparatist are invited to break away from daily routines, to meet the unexpected and, perhaps, to get to know the unknown."*[20]

A comparative research objective aims to compare two or more legal constructs in order to uncover their similarities and differences. In traditional legal research we distinguish between internal, historical and external comparison.

Internal comparison implies a comparison of legal concepts from the same legal system.[21] Such a comparison is possible within one legal discipline (e.g. to compare unemployment benefits of employees to those of civil servants) or between different legal disciplines (e.g. comparing the concept 'employee' in labour law to the same concept in social security law).[22] Finally, it is also possible to compare between different state levels: federal, regional and municipal law, or even between sectorial collective agreements.[23] So it may not be surprising that internal comparisons

17 L. KESTEMONT, *Naar een rechtswetenschappelijke methodeleer. Een expliciet methodologisch kader voor rechtswetenschappelijk onderzoek in het socialezekerheidsrecht,* Bruges, die Keure (reeks Begasoz/ Abetrass), 2017, 114.

18 L. KESTEMONT, *Naar een rechtswetenschappelijke methodeleer. Een expliciet methodologisch kader voor rechtswetenschappelijk onderzoek in het socialezekerheidsrecht,* Bruges, die Keure (series Begasoz/ Abetrass), 2017, 132.

19 L. KESTEMONT, *Naar een rechtswetenschappelijke methodeleer. Een expliciet methodologisch kader voor rechtswetenschappelijk onderzoek in het socialezekerheidsrecht,* Bruges, die Keure (series Begasoz/ Abetrass), 2017, 192.

20 G. FRANKENBERG, "Critical Comparisons: Re-thinking Comparative Law", *Harv.Int'l L.J.* 1985, 411–412.

21 W. DEVROE, *Rechtsvergelijking in een context van europeanisering en globalisering*, Leuven, Acco, 2010, 34–35; H. TIJSSEN, *De juridische dissertatie onder de loep*, The Hague, Boom juridische uitgevers, 2009, 76; M.H. WISSINK, "Op weg naar een nieuwe ronde", *NJB* 2006, 1363; A.E. ODERKERK, *De preliminaire fase van het rechtsvergelijkend onderzoek*, Nijmegen, Ars Aequi Libri, 1999, 5.

22 M. HERWEIJER, "Juridisch onderzoek" in J.W.L. BROEKSTEEG & E.F. STAMHUIS (eds.), *Rechtswetenschappelijk onderzoek. Over object en methode*, The Hague, Boom Juridische uitgevers, 2003, 31.

23 D. PIETERS, "Functions of comparative law and practical methodology of comparing" in *Syllabus Research Master in Law*, Leuven-Tilburg, 2009, 10.

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can be rather diverse: comparing between (modalities of) regulations, groups of individuals, legal institutions, case law of different courts, etc.[24]

A *historical comparison* compares legal constructs from different periods in time. For example: how was Roman private law reflected in various legal systems? Did they have similar legal constructs?[25] Historical comparisons do not qualify as legal history, because the past is not approached diachronically. On the contrary, legal constructs from different periods in time are compared in a synchronic and static way.[26] When opting for a historical comparison, it is important to realize that in the past some problems or legal constructs did not (yet) exist or have developed over time. After all, law and societal developments are closely intertwined: for example, legislation to protect shareholders can only exist in a society with a capital market.[27]

An *external comparison* compares (legal constructs from) two or more legal systems.[28] These legal systems can be compared on a national, supranational or international level.[29] External comparison is quite popular in legal scholarship as it allows exceeding national boundaries. Its outcomes can lead to a classification of legal families, can be helpful or inspiring when trying to solve a national problem, can put one's own legal system into perspective and can even be essential when considering harmonization measures.[30]

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24 L. KESTEMONT, *Naar een rechtswetenschappelijke methodeleer. Een expliciet methodologisch kader voor rechtswetenschappelijk onderzoek in het socialezekerheidsrecht,* Bruges, die Keure (series Begasoz/ Abetrass), 2017, 135–137.

25 Example from: M. LÖHNIG, "A Few Words about Comparative Legal History" in M. ADAMS & D. HEIRBAUT (eds.), *The Method and Culture of Comparative Law*, Oxford, Hart Publishing, 2014, 115.

26 D. PIETERS, "Functions of comparative law and practical methodology of comparing" in *Syllabus Research Master in Law*, Leuven-Tilburg, 2009, 11; W. DEVROE, *Rechtsvergelijking in een context van europeanisering en globalisering*, Leuven, Acco, 2010, 29; J. HUSA, "Research Designs of Comparative Law" in M. ADAMS and D. HEIRBAUT (eds.), *The Method and Methodology*, Oxford, Hart Publishing, 2014, 58.

27 R. MICHAELS, "The Functional Method of Comparative Law" in M. REIMANN and R. ZIMMERMANN (eds.), *The Oxford Handbook of Comparative Law*, Oxford, Oxford University Press, 2006, 368.

28 W. PINTENS, *Inleiding tot de rechtsvergelijking*, Leuven, Universitaire Pers Leuven, 1998, 16; A.E. ODERKERK, *De preliminaire fase van het rechtsvergelijkend onderzoek*, Nijmegen, Ars Aequi Libri, 1999, 5; W. DEVROE, *Rechtsvergelijking in een context van europeanisering en globalisering*, Leuven, Acco, 2010, 35; M. VAN HOECKE, *Is de rechtswetenschap een empirische wetenschap?*, The Hague, Boom Juridische uitgevers, 2010, 14; F. GORLÉ, G. BOURGEOIS, H. BOCKEN, F. REYNTJENS, W. DE BONDT & K. LEMMENS, *Rechtsvergelijking*, Mechelen, Kluwer, 2007, 1.

29 HUSA discusses *horizontal comparison* and *vertical comparison*. J. HUSA, "Research Designs of Comparative Law" in M. ADAMS & D. HEIRBAUT (eds.), *The Method and Methodology*, 2014, 59; D. PIETERS, "Functions of comparative law and practical methodology of comparing" in *Syllabus Research Master in Law*, Leuven-Tilburg, 2009, 10.

30 Compilation of: D. PIETERS, "Functions of comparative law and practical methodology of comparing" in *Syllabus Research Master in Law*, Leuven-Tilburg, 2009, 3 ff; G. DANNEMANN, "Comparative Law: Study of Similarities or Differences" in M. REIMANN and R. ZIMMERMANN (eds.), *The Oxford Handbook of Comparative Law*, Oxford, Oxford University Press, 2006, 401–406.; M. VAN HOECKE, "Deep Level Comparative Law" in M. VAN HOECKE (ed.), *Epistemology and Methodology of Comparative Law*, Oxford, Hart,

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Although we distinguish three types of comparison, it is possible to combine them: for example, on the one hand comparing liability issues of employees in national public and private sectors *(internal)*, and on the other hand comparing liability schemes in three different EU member states (*external*).[31]

2.4 THEORY-BUILDING RESEARCH OBJECTIVE

"Theorizing involves trying to get a better understanding of particulars by seeing them in a more abstract and general way."[32]

A theory-building research objective aims to uncover patterns or common denominators from a set of legal rules or cases in order to develop a model or a theory.[33] Legal scholars do not often use the concepts 'theory' or 'model'; instead they refer to 'legal doctrines'.[34] Examples are the tort doctrine or the doctrine on the abuse of rights.[35] A theory-building research objective will in the end result

2004, 172; A.E. ODERKERK, *De preliminaire fase van het rechtsvergelijkend onderzoek*, Nijmegen, Ars Aequi Libri, 1999, 73–88; J. HILL, "Comparative Law, Law Reform and Legal Theory", *O.J.L.S.* 1989, 102; F. KUNNEMAN, *Rechtswetenschap*, Nijmegen, Ars Aequi Libri, 1991, 48; W. PINTENS, *Inleiding tot de rechtsvergelijking*, Leuven, Universitaire Pers Leuven, 1998, 33 ff.; W. DEVROE, *Rechtsvergelijking in een context van europeanisering en globalisering*, Leuven, Acco, 2010, 30–32; C. MORRIS and C. MURPHY, *Getting a PhD in Law,* Oxford, Hart Publishing, 2011, 37.

31 L. KESTEMONT, *Naar een rechtswetenschappelijke methodeleer. Een expliciet methodologisch kader voor rechtswetenschappelijk onderzoek in het socialezekerheidsrecht,* Bruges, die Keure (reeks Begasoz/ Abetrass), 2017, 135.

32 W. TWINING, *Law in context,* Oxford, Clarendon Press, 1997, 134.

33 P. SCHOLTEN, "De structuur der rechtswetenschap" in *Verzamelde Geschriften van wijlen Prof. Mr. Paul Scholten*, Zwolle, Tjeenk Willink, 1949, 401; P. SCHLAG, "Spam Jurisprudence, Air Law, and the Rank of Anxiety of Nothing Happening, *Geo.L.J.* 2009, 809; J.M. FEINMAN, "The Jurisprudence of Classification", *Stan.L.Rev.* 1989, 681; L. ALEXANDER, "What We Do, and Why We Do it", *Stan.L.Rev.* 1993, 1898. See also: COUNCIL OF AUSTRALIAN LAW DEANS, *Statement on the Nature of Legal Research*, May and October 2005, https://cald.asn.au/wp-content/uploads/2017/11/cald-statement-on-the-nature-of-legal-research-20051.pdf.

34 G. DE GEEST, "Hoe maken we van de rechtswetenschap een volwaardige wetenschap?", *NJB* 2004, 59; J.B.M. VRANKEN, "Algemeen Deel. Een synthese" in *Mr. C. Assers Handleiding tot de beoefening van het Nederlands Burgerlijk Recht*, Deventer, Kluwer, 2014, 50; A.R. BLOEMBERGEN, "Iets over object en methode van wetenschap en rechtspraak in het privaatrecht" in O.W.M. KAMSTRA, F.B.M. KUNNEMAN and C.W. MARIS (eds.), *Nederlandse rechtswetenschap. Tussen distantie en betrokkenheid: paradigma's in de twingtigste eeuw,* Zwolle, W.E.J. Tjeenk Willink, 1988, 73; G. VAN SCHAAIJK, "Praktijkgericht juridisch onderzoek", *ReM* 2011, afl. 1, 88; M. VAN HOECKE, *Is de rechtswetenschap een empirische wetenschap?*, The Hague, Boom Juridische uitgevers, 2010, 23.

35 M. VAN HOECKE, "Aard en methode van de rechtsdogmatiek", *R&R* 1984, 197; A. PECZENIK, "Scientia Juris. Legal Doctrine as knowledge of Law and as a Source of Law" in E. PATTARO (ed.), *A Treatise of Legal Philosopy and General Jurisprudence,* Dordrecht, Springer, 2005, 33; M. VAN QUICKENBORNE, "Rechtsstudie als wetenschap" in *Actori incumbit probatio. Opstellen aangeboden ter gelegenheid van de eerst promotie rechten aan de universitaire instelling Antwerpen,* Antwerp, Kluwer, 1975, 230.

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in a new theory, an alteration or replacement of an old theory, or a reduction of two existing theories to one general theory.[36]

A legal theory is "a system of coherent, non-contradictory assertions, views and concepts concerning some legal system or part of it, which are worded in such a way that it is possible to deduct from them explanations or predictions concerning the validity or the functioning of legal concepts, rules or principles".[37] This definition clarifies that a theory has both a predictory and an explanatory function. For example, the doctrine on legitimate expectations will help to clarify whether or not an individual has to comply to a specific commitment in particular situation.[38] In this respect, a legal theory will always have an important practical applicability.[39]

Theory-building research objectives are important to legal scholarship as they allow grasping the law as a system, abstracting from particularities to generalities.[40] In this respect, a theory-building research objective goes beyond describing, comparing and classifying legal constructs. By looking beyond details and particularities, legal scholars try to uncover the essentials of legal constructs, including their effects and consequences. The result is a theoretical framework that covers the practical application of law, with all its details and specifics.

Despite the importance of theory-building, legal scholars tend to be rather reticent about it. Most legal scholars have the feeling that "theory-building is something mysterious and only reserved to a few".[41] VAN GESTEL urges legal scholars to get rid of this thought, but at the same time criticizes the uncertainty about theory-building in legal scholarship. Not only its scope and meaning, but also its merits within legal scholarship remain rather unclear.[42]

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36 M. VAN HOECKE, "Aard en methode van de rechtsdogmatiek", *R & R* 1984, 199. See also: W. TWINING, *Law in context,* Oxford, Clarendon Press, 1997, 135.

37 This definition is a combination of VAN HOECKE and VAN GESTEL: M. VAN HOECKE, "Legal Doctrine: Which Method(s) for What Kind of Discipline", in M. VAN HOECKE (ed.), *Methodologies of Legal Research*, Oxford, Hart Publishing, 2011, 15; R.A.J. VAN GESTEL, Preadvies "Kwaliteit van juridische publicaties. Over ranking, peer review, sciëntometrics en vertrouwen in alternatieve evaluatiemethoden" in HANDELINGEN NEDERLANDSE JURISTEN-VERENIGING, *Kwaliteit als keuze in rechtspraak, wetgeving en rechtswetenschap,* Deventer, Kluwer, 2015, 338–339.

38 Example from: M. BARENDRECHT, J. VRANKEN, I. GIESEN, M.J. BORGERS, W. VAN DER BURG, H.E.B. TIJSSEN, G.C.G.J. VAN ROERMUND and W.H. VAN BOOM, "Methoden van rechtswetenschap: komen we verder?", *NJB* 2004, 1425.

39 J.M. BARENDRECHT, "Rechtswetenschap: stoffig of inventief?", *NJB* 1996, 714.

40 P. SCHOLTEN, "Algemeen Deel" in *Asser's Handleiding tot de beoefening van het Nederlandsch Burgerlijk Recht*, Zwolle, W.E.J. Tjeenk Willink, 1954, 75. See also: W. TWINING, *Law in context,* Oxford, Clarendon Press, 1997, 134.

41 Translation of: "theorievorming een geheimzinnig iets is dat maar voor weinigen is weggelegd."R.A.J VAN GESTEL, Preadvies "Kwaliteit van juridische publicaties. Over ranking, peer review, sciëntometrics en vertrouwen in alternatieve evaluatiemethoden" in HANDELINGEN NEDERLANDSE JURISTEN-VERENIGING, *Kwaliteit als keuze in rechtspraak, wetgeving en rechtswetenschap,* Deventer, Kluwer, 2015, 336.

42 R.A.J VAN GESTEL, Preadvies "Kwaliteit van juridische publicaties. Over ranking, peer review, sciëntometrics en vertrouwen in alternatieve evaluatiemethoden" in HANDELINGEN NEDERLANDSE JURISTEN-VERENIGING, *Kwaliteit als keuze in*

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2.5 EXPLANATORY RESEARCH OBJECTIVE

An explanatory research objective aims to clarify why a particular legal construct exists.[43] It is not about describing what something is, but about explaining "why something is as it is."[44] The emphasis lies on the causes, motives, background and roots of law.[45]

Explanatory research objectives are important as they contribute to a better understanding of the existence, content and subsequent modifications of legal rules. However, VAN HOECKE points out that searching for an explanation of legal rules is not really popular in legal scholarship.[46] This is confirmed by an empirical study at Dutch law faculties showing that their academic staff is not really familiar with *why* questions.[47] Moreover, the meta-study of our PhD project also showed that explanatory research objectives are often overshadowed by the other objectives of a research.[48]

It is unfortunate that explanatory research objectives stay in the background too often. Especially because of their importance for formulating future recommendations. VRANKEN is of the opinion that too often legal scholars look for solutions without prior investigating the actual problem: *what* is the problem, *to whom* is it a problem, *why* is it a problem?[49] Without understanding the underlying problem, a recommendation can never offer a suitable solution: "it is like prescribing a medicine, without a diagnosis of the complaint."[50]

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rechtspraak, wetgeving en rechtswetenschap, Deventer, Kluwer, 2015, 339. See also: J.B.M. VRANKEN, "Een nieuw rechtsrealisme in het privaatrecht", *WPNR* 2011, 1121.

43 M. VAN HOECKE, "Hoe wetenschappelijk is de rechtswetenschap?", *TPR* 2009, 649; G.A.F.M. VAN SCHAAIJK, *Praktijkgericht juridisch onderzoek*, The Hague, Boom Juridische uitgevers, 2011, 72.

44 H.A. OOST, *De kwaliteit van probleemstellingen in dissertaties*, Utrecht, Elinkwijk, 1999, 58.

45 I. CURRY-SUMNER, F. KIRSTEN, T. VAN DER LINDEN-SMITH and J. TIGCHELAAR, *Onderzoeksvaardigheden,* Nijmegen, Ars Aequi Libri, 2010, 18; R.A.J. VAN GESTEL and J.B.M. VRANKEN, "Rechtswetenschappelijke artikelen", *NJB* 2007, 1454.

46 M. VAN HOECKE, "Hoe wetenschappelijk is de rechtswetenschap?", *TPR* 2009, 650.

47 W. VAN BOOM and R. VAN GESTEL, "Rechtswetenschappelijk onderzoek. Een samenvatting van de uitkomsten van een landelijke enquête", *NJB* 2015, (full version available online), 11 and 34.

48 L. KESTEMONT, *Naar een rechtswetenschappelijke methodeleer. Een expliciet methodologisch kader voor rechtswetenschappelijk onderzoek in het socialezekerheidsrecht,* Bruges, die Keure (reeks Begasoz/ Abetrass), 2017, 201.

49 J.B.M. VRANKEN, "Algemeen Deel. Een synthese" in *Mr. C. Assers Handleiding tot de beoefening van het Nederlands Burgerlijk Recht*, Deventer, Kluwer, 2014, 52.

50 Translation of: "het lijkt op het voorschrijven van een medicijn zonder diagnose van de ziekte."J.B.M. VRANKEN, "Algemeen Deel. Een synthese" in *Mr. C. Assers Handleiding tot de beoefening van het Nederlands Burgerlijk Recht*, Deventer, Kluwer, 2014, 53.

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2.6 EVALUATIVE RESEARCH OBJECTIVE

An evaluative research objective aims to assess/evaluate a legal construct in view of a 'norm'.[51] Many authors believe that evaluating the law is a *duty* of legal scholarship.[52] As legal scholars are bound by current law to a lesser degree than legislators or judges, they are in the best position to distance themselves for a critical assessment.

An evaluative research objective can assess whether a legal construct attains its goals or solves a specific problem, whether it is in compliance with a general principle of law, whether it violates a supranational legal norm, etc. As legal scholars can put forward different 'norms', evaluations in legal scholarship can be quite diverse.[53]

The results of an evaluative research objective will play an important role when legal scholars aim to formulate recommendations at the end of their research.[54] However, they remain two distinct objectives: an evaluative research objective results in the evaluation of a legal construct, whereas a recommendatory research objective goes a step further and recommends how the legal construct *should* be. Consequently, both objectives correspond to a different phase of the research and require their own methodological approach.

2.7 RECOMMENDATORY RESEARCH OBJECTIVE

Finally, as discussed above, recommendatory research objectives aim to determine how the law *should* be. This type of research objective reflects the "solution-oriented attitude" of legal scholars "to carry out improvements or changes to arrive at a fairer functioning of the law or a more efficient and effective functioning."[55] Not

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51 H. TIJSSEN, *De juridische dissertatie onder de loep*, The Hague, Boom Juridische uitgevers, 2009, 58.

52 A.R. BLOEMBERGEN, "Iets over object en methode van wetenschap en rechtspraak in het privaatrecht" in O.W.M. KAMSTRA, F.B.M. KUNNEMAN and C.W. MARIS (eds.), *Nederlandse rechtswetenschap. Tussen distantie en betrokkenheid: paradigma's in de twingtigste eeuw,* Zwolle, W.E.J. Tjeenk Willink, 1988, 76; M. VERHORST, "De rechtswetenschappelijke gemeenschap" in O.W.M. KAMSTRA, F.B.M. KUNNEMAN and C.W. MARIS (eds.), *Nederlandse rechtswetenschap. Tussen distantie en betrokkenheid: paradigma's in de twintigste eeuw,* Zwolle, W.E.J. Tjeenk Willink, 1988, 355.

53 L. KESTEMONT, *Naar een rechtswetenschappelijke methodeleer. Een expliciet methodologisch kader voor rechtswetenschappelijk onderzoek in het socialezekerheidsrecht,* Bruges, die Keure (reeks Begasoz/ Abetrass), 2017, 203.

54 A.R. MACKOR, "Legal Doctrine As a Non-Normative Discipline", *Recht en Methode* 2012 (1), 24; H. TIJSSEN, *De juridische dissertatie onder de loep*, The Hague, Boom Juridische uitgevers, 2009, 59.

55 Translation of: "Opvallend is dat de onderzoeker vrijwel altijd onderzoek doet vanuit een oplossingsgerichte attitude; zijn doel is primair om verbeteringen of veranderingen te willen doorvoeren met het oog op een rechtvaardiger functioneren van het recht of gericht op het streven naar een effectieve en efficiënte werking ervan." H. TIJSSEN, *De juridische dissertatie onder de loep*, The Hague, Boom Juridische uitgevers, 2009, 165. See also HUTCHINSON

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only academic literature acknowledges that the formulation of recommendations is typical for legal scholarship[56], it is also confirmed by empirical research. For example, a research at Dutch law faculties has shown that their academic staff characterize their publications mainly as proposals for improvement of existing law.[57] In addition, the meta-study of our PhD project indicated that the formulation of recommendations was the main research objective in more than 2/3 of the studied PhDs.[58] Despite the popularity of recommendatory research objectives, VRANKEN questions legal scholars' urge to formulate recommendations. He notices that "in legal research it is almost self-evident that current law is not proper. Even before shortcomings – and if so which ones – are ascertained, measures for improvement are already been recommended."[59]

To conclude, a recommendatory research objective results in a proposal to enact, complete, modify or abolish law. The effects of the recommendation should allow for existing problems, such as inconsistencies or lacunas, to be solved or at least ameliorated.[60]

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about 'reform perspective': T. HUTCHINSON, "Doctrinal research" in D. WATKINS and M. BURTON (eds.), *Research Methods in Law,* London, Routledge, 23; J.B.M. VRANKEN, "Algemeen Deel. Een synthese" in *Mr. C. Assers Handleiding tot de beoefening van het Nederlands Burgerlijk Recht*, Deventer, Kluwer, 2014, 10.

56 F. KUNNEMAN, *Rechtswetenschap*, Nijmegen, Ars Aequi Libri, 1991, 8; E.L. RUBIN, "Law and the Methodology of Law", *Wis.L.Rev.* 1997, 523; E.M.H. HIRSCH BALLIN, "Object en methode van de wetenschap van het staatsrecht en het bestuursrecht" in O.W.M. KAMSTRA, F.B.M. KUNNEMAN and C.W. MARIS (eds.), *Nederlandse rechtswetenschap. Tussen distantie en betrokkenheid: paradigma's in de twingtigste eeuw,* Zwolle, W.E.J. Tjeenk Willink, 1988, 86; E.L. RUBIN, "The Practice and Discourse of Legal Scholarship", *Mich.L.Rev.* 1987–88, 1847; C. STOLKER, "Een discipline in transitie, *ReM* 2011, afl. 1, 23; J. VRANKEN, "Exiciting Times for Legal Scholarship", *ReM* 2012, afl. 2, 48; M. VAN HOECKE, "Aard en methode van de rechtsdogmatiek", *R & R* 1984, 188; R.A.J. VAN GESTEL and J.B.M. VRANKEN, "Rechtswetenschappelijke artikelen", *NJB* 2007, 1455; D.W. VICK, "Interdisciplinarity and the Discipline of Law", *Brit.J.Law & Soc.* 2004,179; J.B.M. VRANKEN, "Nieuwe richtingen in de rechtswetenschap, *WPNR* 2010, 322; P. WESTERMAN and M. WISSINK, "Rechtsgeleerdheid als rechtswetenschap", *NJB* 2008, 505; M. VAN HOECKE, "Legal Doctrine: Which Method(s) for What Kind of Discipline?" in M. VAN HOECKE (ed.), *Methodologies of Legal Research*, Oxford, Hart Publishing, 2011, 10; J. HAGE, "The Method of a Truly Normative Legal Science" in M. VAN HOECKE (ed.), *Methodologies of Legal Research*, Oxford, Hart Publishing, 2011, 29.

57 W. VAN BOOM and R. VAN GESTEL, "Rechtswetenschappelijk onderzoek. Een samenvatting van de uitkomsten van een landelijke enquête", *NJB 2015* (full version available online), 11.

58 L. KESTEMONT, *Naar een rechtswetenschappelijke methodeleer. Een expliciet methodologisch kader voor rechtswetenschappelijk onderzoek in het socialezekerheidsrecht,* Bruges, die Keure (reeks Begasoz/ Abetrass), 2017, 112.

59 Translation of: "het bijna vanzelfsprekende uitgangspunt bij juridisch onderzoek is dat het huidige recht niet goed is. Nog voordat is vastgesteld of er wel tekortkomingen zijn en zo ja welke, komen al verbetermaatregelen in zicht." J.B.M. VRANKEN, "Als een arrest niet bevalt, laten wij het gewoon weg" in H. NIEUWENHUIS (ed.), *Ex Libris,* Deventer, Kluwer, 2009, 86.

60 F. KUNNEMAN, *Rechtswetenschap*, Nijmegen, Ars Aequi Libri, 1991, 9; H. TIJSSEN, *De juridische dissertatie onder de loep*, The Hague, Boom Juridische uitgevers, 2009, 59, 74 en 165.

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